

11. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
***HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL**
FILED BY:

TENTATIVE RULING:

On February 19, 2026, plaintiff Sebrion Mchenry-Stewart ("Plaintiff") filed a motion for leave to serve defendants Jesse Gillespie and Regional Protection Agency Services Inc. ("Defendants") by email (the "Motion for Leave to Serve by Email"). The Motion for Leave to Serve by Email was set for hearing on June 29, 2026.

Background

Plaintiff filed this action on January 20, 2026. The Petition seeks monetary damage and enforcement of a Decision of the Labor Commissioner of the State of California in Plaintiff's favor dated December 18, 2025.

Analysis

Plaintiff references Code of Civil Procedure section 415.50(c). That section provides "Service of a summons in this manner is deemed complete as provided in Section 6064 of the Government Code" and relates to service via publication when permitted. See Code Civ. Proc. § 415.50(c).

This is not a request for leave to serve via publication.

The Court does not find any basis to order service of process on either of the Defendants by email.

Lastly, it is not clear to the Court why this suit is being pursued if the Labor Commissioner may initiate the appropriate process to confirm a court judgment based on the Decision.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Serve by Email is DENIED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

Continued to August 10, 2026, 9:00 am, in Department 34, pursuant to the stipulation of the parties and the Court's Order signed June 17, 2026.

13. 9:00 AM CASE NUMBER: MSC20-01624

CASE NAME: RAFAY VS FCA US, LLC

*HEARING ON MOTION IN RE:

FILED BY:

TENTATIVE RULING:

Plaintiff Rayan Rafay ("Plaintiff") filed a Motion for Attorneys' Fees, Costs and Expenses on December 8, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$50,451.00 in attorneys' fees, with a 1.35 multiplier of \$17,657.85, totaling \$68,108.85, plus \$4,603.30 in costs, not inclusive of any further fees incurred on this motion, as against defendant FCA US, LLC ("Defendant"). The Motion for Fees and Costs was set for hearing on April 27, 2026. The Court *sua sponte* continued the matter from April 27, 2026 to June 15, 2026 and, later, to June 29, 2026. The motion is opposed.

Background

This matter was resolved by way of a settlement upon Plaintiff's acceptance of Defendant's 998 offer (the "Settlement Agreement"). See Declaration of Dhara Chandy filed December 8, 2025 ("Chandy Decl.") ¶¶63-64 and **Exhibit 2** thereto. Among the terms was a settlement payment of \$118,974.60 payable to Plaintiff by Defendant. Settlement Agreement, ¶1, Chandy Decl., **Exhibit 2**. The agreement also includes a provision that Plaintiff is the prevailing parties and provides for Plaintiff's recovery of "reasonable costs, expenses, and attorneys' fees" in connection with the action:

3. If the parties are unable to resolve attorney's fees and costs, Plaintiff may seek reasonable costs, expenses and attorneys' fees pursuant to a properly noticed motion pursuant to Civil Code Section 1794(d). FCA agrees that Plaintiff is the prevailing party for the purposes of a fee motion, as defined by Civil Code section 1032. If a motion is needed, this shall not be construed as a waiver of FCA's rights to assert arguments in opposition thereto based on the reasonableness of the fees, costs or expenses sought.

Settlement Agreement, ¶13, Chandy Decl., **Exhibit 2**.

The Motion for Fees and Costs is supported by the declaration of Plaintiff's attorneys summarizing the conduct of the litigation and outcome achieved. See Chandy Decl., ¶13 *et seq.*; see also Declaration of Payam Shahian filed December 8, 2025 ("Shahian Decl.") ¶13 *et seq.*

Counsel Shahian's declaration describes the billing attorneys' and paralegals' background and professional experience and the reasonableness of their billing rates. See Shahian Decl., ¶17 *et seq.* The declarations describe the work done, the results achieved and proffers supporting billing records. Chandy Decl., ¶¶17-67; Shahian Decl., **Exhibit 1**.

The total "base" amount billed was \$50,451.00. Shahian Decl., ¶29 and **Exhibit 1** thereto. Plaintiff seeks a "lodestar multiplier" of 1.35 in light of, among other things, the contingency representation, the conduct of the litigation and the outcome achieved. See *id.* at ¶22 *et seq.*; see also Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p.1 *et seq.* The motion seeks an additional \$2,500 for estimated further attorney's fees in connection with this motion. *Id.* at ¶47.

Plaintiffs' motion is further supported by a Request for Judicial Notice ("Plaintiff's RJN") referencing orders in multiple other cases in state and federal court, including what appear to be proffered quotations from several cases included in the body of Plaintiff's RJN. See Plaintiff's RJN filed December 8, 2025. The Request for Judicial Notice is DENIED. The RJN fails to attach true and correct